

Towards a new international instrument on the conservation and sustainable use of marine biodiversity in ABNJ

International Oceans Institute

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71%

OF EARTH IS
COVERED BY
OCEAN

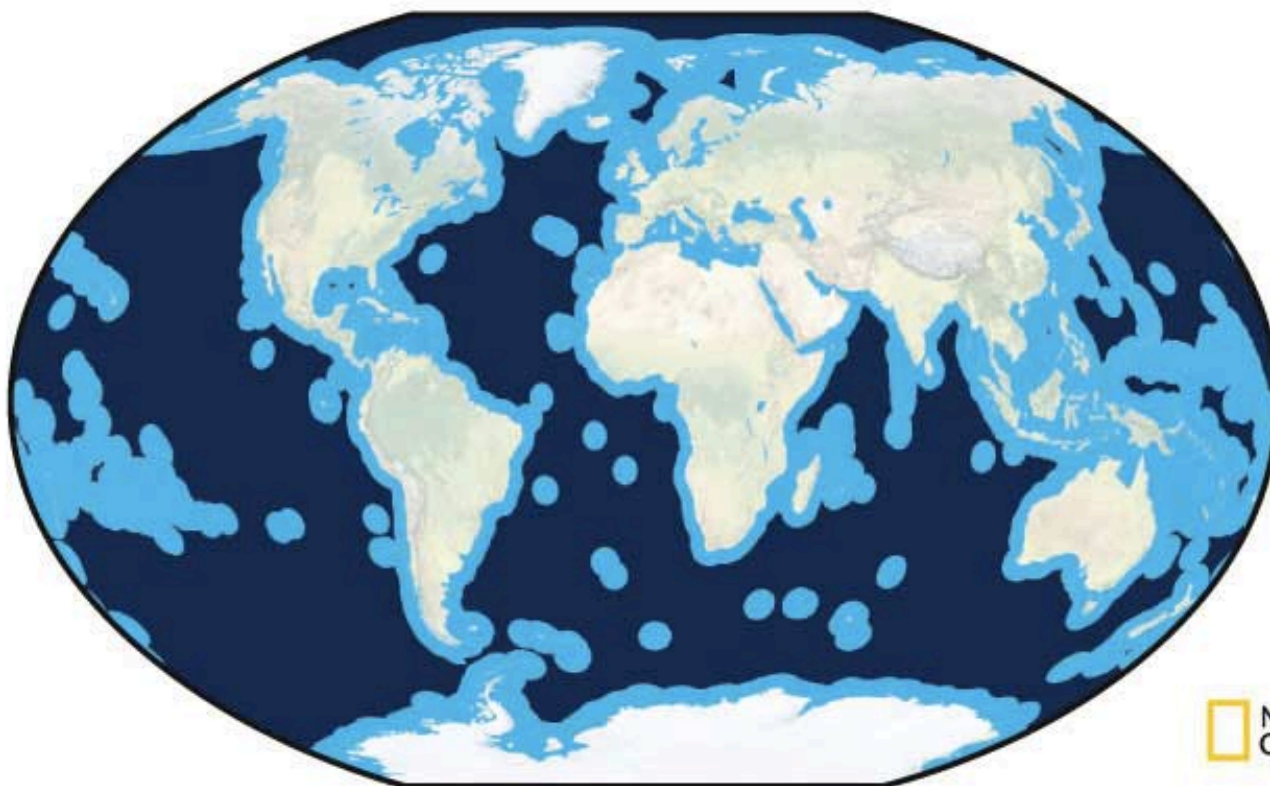
64%

OF THE OCEAN
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THE HIGH SEAS/
INTERNATIONAL
WATERS

THE HIGH SEAS
COVER

45%

OF THE EARTH'S
SURFACE



 NATIONAL
GEOGRAPHIC

Timeline

- **2006** – Formation of the BBNJ Working Group
- **2011** – Agreement of the ‘Package Deal’
- **2012** – Rio+20 commitment
- **2014** (April & June) – BBNJ meetings
- **2015**
 - Final (?) BBNJ meeting - January
 - UNGA – August/September

The 2011 'Package Deal'

1. Marine genetic resources, including questions on the sharing of benefits
2. Measures such as area-based management tools, including marine protected areas
3. Environmental impact assessments
4. Capacity-building and the transfer of marine technology.

BBNJ meeting June 2014

- A strong 'coalition of the willing' developing
- Progressive involvement of developing states
 - Pacific nations
 - CARICOM
 - African Union
- Inclusion of civil society
- Lots of World Cup banter



BBNJ meeting June 2014

- But, a number of States impeding consensus



(Limited) points of agreement

- Maintain Rio+20 deadline
- Primacy of UNCLOS
- Package Deal
- Suspension of the 'common heritage' vs freedom debate
- Respect the mandates of existing organisations

Overarching issues

- Legal gaps vs. implementation gaps/broader vision
- Respect the mandates of existing organisations - what does this mean in practice?
 - Fisheries
- International vs. Regional
- Institutional structure



Key questions relating to package deal issues

- Institutional structure
- Compliance mechanism
- Mechanisms for implementation
 - E.g. MPAs and technology transfer
- The role of existing sectoral and regional organisations (in all aspects of implementation)
- Standards and scientific input for EIAs, MPAs

Example: designation of MPAs in ABNJ

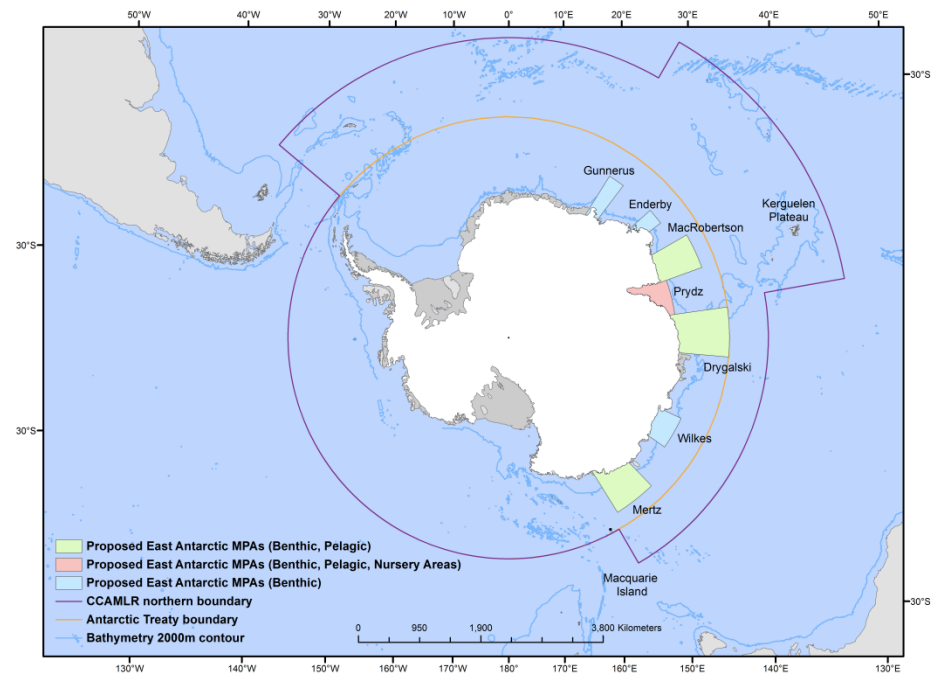
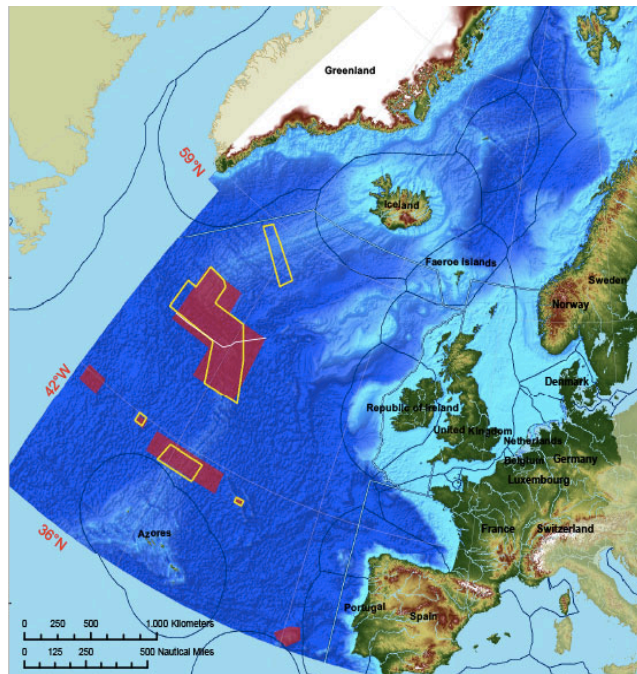
Scientific basis	Proponent	Review
Track 1: existing international and regional criteria, e.g. VME, OSPAR / Mediterranean / IMO, ISA etc. (EBSA?) Track 2: other scientific basis (including EBSAs?) Describe the impact but not the response (the response it to be developed by competent authority) (sequence as for PSSAs?)	States International and regional organisations NGOs / Scientific organisations (to go forward to be « sponsored » by state party) Questions : - How many States? (one or more) - Who would be entitled to propose areas (see Med Sea “neighboring states”;	Scientific/technical committee established under the new agreement? Use of existing institutions?

Example: designation of MPAs in ABNJ

Designation	Adoption of management measures	Implementation	Review/oversight
UNCLOS IA COP Sectoral measures Other international organisation(s) Consensus vs. majority voting (MARPOL approach - 2/3) Designation at the same time with management measures or in two steps (designation through an IA COP and management measure taken at the regional/sectoral level). (CBD legally possible but politically not feasible?)	Cooperation and coordination between competent organisations in drafting management plan Either through agreed mechanism, or 'informally', as at present Elaboration by Scientific Committee/regional sub-committees Obligation of parties to work through the competent organisations (IMO etc.) Regional Organisations as "broker" In areas without regional programmes establish new bodies (question: how to identify boundaries)	States Relevant regional/sectoral organisations Flag states individually and through competent authorities Port states compliance	Review mechanism Established under COP Review process also within competent authorities Two types: A) relevance; B) implementation

Interim regional approaches

- North Atlantic: OSPAR/NEAFC
- Antarctic: ATS/CCAMLR
- Sargasso Sea Commission



Next steps

- BBNJ chairs to write a 'Convergence Report'
- States to make further submissions
- BBNJ meeting in January
- Consensus? Further meeting(s)?
- Negotiations could commence in 2016?

Some concluding thoughts

- A feeling of urgency cf. a long and complex governance process
- A unique opportunity?
- Fragmentation of global governance: new instrument necessary but must utilise existing tools
- Can improve coherence, cooperation and coordination
- Implementation? Compliance?

Further reading...

IDDRI
SciencesPo.



STUDY

N°10/12 SEPTEMBER 2012 BIODIVERSITY

Governance of marine biodiversity in areas beyond national jurisdiction at the regional level: filling the gaps and strengthening the framework for action

Case studies from the North-East Atlantic, Southern Ocean, Western Indian Ocean, South West Pacific and the Sargasso Sea

Elisabeth Druel, Pascale Ricard, Julien Rochette (IDDRI), Carole Martinez (French Marine Protected Areas Agency)

PROTECTING MARINE BIODIVERSITY IN AREAS BEYOND NATIONAL JURISDICTION AT THE REGIONAL LEVEL

Marine biodiversity in areas beyond national jurisdiction (ABNJ) is currently at the heart of various international negotiations, including a process held under the auspices of the United Nations General Assembly. This process may, in the future, lead to the adoption of an implementing agreement to the United Nations Convention on the Law of the Sea (UNCLOS) on the subject. However, while discussions are ongoing, it is becoming more and more apparent that action at the regional level is needed. Indeed, the regional level is today the most operational level and progress made within regional frameworks could positively influence discussions at other international levels.

FIVE CASE STUDIES

In order to address this issue, this study analyses five different regional frameworks, highlighting their major gaps and defining options for their closure. In the North-East Atlantic and in the Southern Ocean, protection is being established through regional conventions which have a mandate for ABNJ. In the Western Indian Ocean and in the South West Pacific, major institutional gaps exist, which need to be closed through appropriate actions. Finally, in the Sargasso Sea, where there is no regional framework in place, actions have been undertaken by an Alliance formed with public and private partners.

THE COMPLEMENTARY ROLES OF THE REGIONAL AND GLOBAL LEVELS

Although each region described in the study has its particularities, there are a number of issues which are common to all, such as the third and free rider States issue or the question of coordination and cooperation within the regional organizations and between these organizations and the global organizations. A solution to these issues will only be found at the global level. In this respect, the two levels (global/regional) must be seen as complementary, especially if an implementing agreement to UNCLOS on marine biodiversity in ABNJ is adopted in the near future.

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STUDY

N°13/15 JANUARY 2013 BIODIVERSITY

Environmental impact assessments in areas beyond national jurisdiction

Elisabeth Druel (IDDRI)

GAPS IN THE CURRENT GLOBAL FRAMEWORK

Although a number of obligations to carry out environmental impact assessments in areas beyond national jurisdiction exist, the current global framework is far from being complete. It is mostly sector-based (deep-sea fisheries, seabed mining, ocean fertilization) or region-specific (within the Antarctic Treaty System or to a lesser extent in a few number of regional seas conventions), and does not take into account cumulative impacts of human activities on the marine environment. General guidance on the subject has been adopted in 2012 by the Parties to the Convention on Biological Diversity, but is limited to technical aspects and is not legally binding.

AN ISSUE DEBATED AT THE GLOBAL LEVEL

The United Nations General Assembly has been debating on the need for an implementing agreement to the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction. Environmental impact assessments are considered as being one of the potential topics for inclusion in a future multilateral agreement.

POSSIBLE WAYS FORWARD

The adoption of an international legally-binding instrument dealing inter alia or solely with environmental impact assessments in areas beyond national jurisdiction would already be a good step forward. However, its content will prove crucial to ensure the efficiency of any environmental impact assessment process in areas beyond national jurisdiction and to fill regulatory and governance gaps. Minimum requirements should therefore be defined, for example: including objectives or principles against which the outcome of any EIA will be tested, such as "zero-biodiversity loss", defining a screening process, with appropriate thresholds, and providing for the creation of an advisory scientific and technical body and of a global compliance committee.

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ISSUE BRIEF

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The Scores at Half Time

An update on the international discussions on the governance of marine biodiversity in areas beyond national jurisdiction

Glen Wright, Julien Rochette (IDDRI), Sebastian Unger (IASS), Kristina Gjerde (IUCN), Jeff Ardrin (IASS)

* The second meeting of the BBNJ WG took place during the group stages of the 2014 World Cup, resulting in a number of light-hearted exchanges amongst delegations.

Marine areas beyond national jurisdiction (ABNJ) represent around half of the Planet's surface and a significant amount of its biodiversity. Over the past decades, the international community has become increasingly cognisant of the growing threats to ABNJ. To address this issue, the United Nations General Assembly (UNGA) created an Ad-Hoc Open-ended Informal Working Group ("BBNJ Working Group") to engage in discussions on the conservation and sustainable use of marine biodiversity in ABNJ.

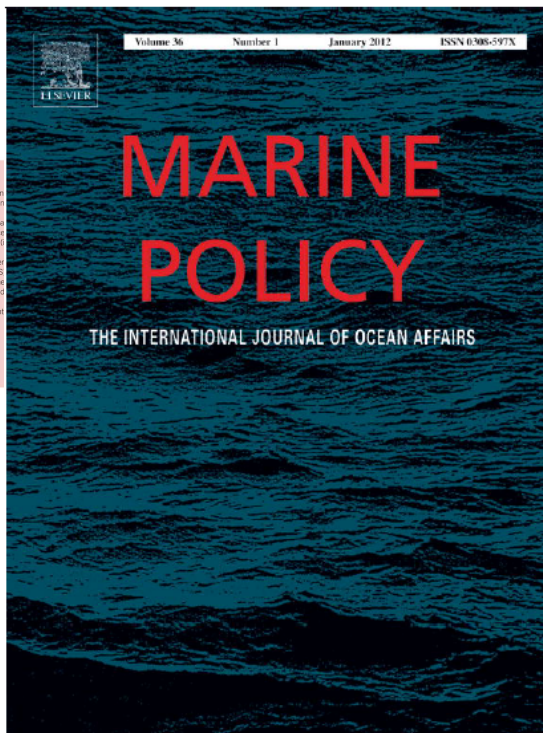
Since the commencement of discussions in 2006, the focus has mainly been on gaps in the current international framework and whether these necessitate the adoption of a new instrument. In particular, States have discussed the possible adoption of an Implementing Agreement to the United Nations Convention on the Law of the Sea (UNCLOS) on the conservation and sustainable use of marine biodiversity in ABNJ (UNCLOS-X).

At the 2012 United Nations Conference on Sustainable Development ("Rio+20"), States agreed to decide by the end of the 69th session of the UNGA (September 2012) whether or not to launch the negotiations for the conclusion of such a new global agreement. This decision-making process spans three meetings of the BBNJ Working Group, specifically convened to discuss "the scope, parameters and feasibility of an international instrument under UNCLOS".

Two of these meetings have already taken place, in April 4 and June 26-29, 2014. This paper highlights the remaining challenges on the "long and winding road" towards the conservation and sustainable use of marine biodiversity in ABNJ.

HIGHLIGHTS

- A large majority of States now support the opening of negotiations for a UN Convention on the Law of the Sea (UNCLOS) Implementing Agreement on the conservation and sustainable use of marine biodiversity in ABNJ.
- States also agree that the possible future negotiations should be based on the "Package Deal" agreed in 2011, covering (i) marine genetic resources based management tools, (ii) environmental impact assessments, and (iii) building and the transfer of marine technology.
- There are however controversies about whether an UNCLOS Implementing Agreement should fit only legal gaps (e.g. on access and benefit sharing (ABS) broader vision, e.g. by enumerating guiding principles for the management strengthening existing agreements and institutional arrangements, and cooperation and coordination.
- States are divided on the role of an UNCLOS Implementing Agreement management.



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